

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: September 17, 2026

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1.	U.S. Technical Consultants, Inc. v. Cutter AVIATION 25-1530391	Defendant Cutter Aviation, Inc.'s ("Defendant") motion for attorney fees and costs against plaintiff U.S. Technical Consultants, Inc. ("Plaintiff") is GRANTED. The attorney fee request comes from an underlying motion to quash service of summons wherein counsel for Plaintiff used what are

		commonly identified as “AI hallucinations” as citations and legal arguments. Defendant was successful on that motion and the case was dismissed. (ROA 48.) The court also noted the AI hallucinations and issued monetary sanctions against Plaintiff’s counsel in the sum of \$950 payable to the court. Defendant now seeks attorney fees it claims were incurred for time expended on the AI hallucination issue, which Plaintiff’s counsel agreed to at the hearing upon an agreement on the amount of fees, and costs as the prevailing party. Of the arguments Defendant made in support of attorney fees, only those under Civ. Proc. Code § 128.5 have merit. <i>Civ. Code § 1717</i> and <i>Civ. Proc. Code § 1032</i> are not availing as no contract with attorney fees language was provided. Under <i>Civ. Proc. Code § 128.5</i>, reasonable expenses, including attorney fees incurred by a party, can be awarded for actions or tactics made in bad faith or which are frivolous. (subd. (a).) The definition of bad faith includes a lack of diligence or slacking off. (BAD FAITH, Black's Law Dictionary (12th ed. 2024).) The court finds failure to discover AI hallucinations included in a brief filed with the court is sufficient for bad faith. Additionally, including arguments which are completely without merit in the pleading, as they are AI hallucinations, qualifies as “frivolous.” As such, an award of attorney fees under <i>Civ. Proc. Code § 128.5</i> is GRANTED. The court has reviewed the billing entries provided by Defendant and finds the reasonable sum related to AI hallucinations to be \$4,110. As most of the issues in the reply brief and those presented at hearing were related to the quash arguments and not the AI hallucination issues, the court in its discretion will not award the “mixed” billing. The court will also award \$2,415 Defendant contends it incurred on the present motion. Finally, as Defendant was the prevailing party in this action, Defendant is awarded its \$545.58 in costs. (<i>Civ. Proc. Code §§ 1032 and 1033.5; Shisler v. Sanfer Sports Cars, Inc.</i> (2008) 167 Cal. App. 4th 1, 6-7.) The combined \$6,525 in attorney fees is awarded in favor of Defendant and against Plaintiff and its counsel of record. The award of \$545.58 in costs is awarded in favor of Defendant and against Plaintiff alone. <i>Defendant to give notice.</i>
2.	Arman v. Director of the Department of Motor Vehicles 26-1587263	The hearing on the Petition for Alternative Writ of Mandate, etc., filed on 7/30/26 by Petitioner Kevin Arman, is CONTINUED to October 22, 2026 at 1:30 p.m. in this Department. Petitioner has failed to demonstrate that the Petition itself, along with the 8/4/26 Order setting the hearing date for the merits of the

		Petition, were properly served on the Department of Motor Vehicles ("DMV"). Petitioner is to serve the DMV with a copy of the Petition, along with his prior <i>ex parte</i> papers, the 8/4/26 Order, his Notice of Lodgment, and a Notice of Continued Hearing on Petition which shows the new hearing date, in the same manner as service of summons per C.C.P. § 415.10 et seq. A Proof of Service reflecting compliance is to be promptly filed in this action. <i>Petitioner is to give notice of this ruling.</i>
3.	Avalos v. Summerville at Cobbco Inc. 25-1536262	Before the Court is a motion by Defendants Summerville at Cobbco, Inc. (Summerville) dba Brookdale Garden Grove and Emeritus Corporation (Emeritus) (collectively, Defendants) whereby they seek to disqualify plaintiff's counsel Stephen Hunter (Hunter) and his law firm Hunter Law, PC from serving as counsel for plaintiffs Andres A. Avalos, by and Through His Successor In Interest, Karina Jones, Gustavo Avalos, Jorge Avalos (collectively, Avalos). For the reasons set forth herein, the motion is DENIED. The Court notes initially that Defendants submitted 980 pages of exhibits at ROA 52 and failed to bookmark the document. Counsel is admonished to take the necessary steps to ensure future compliance with the Rules of Court as the Court requires strict compliance with <i>CRC, rule 3.1110 (f) (4)</i> which requires electronic exhibits to include electronic bookmarks with the links to the first page of each exhibit, and with bookmarked titles that identify the exhibit number or letter and briefly describe the exhibit. The within matter is brought on the grounds that Hunter, during the time he was a partner at the Pleiss Sitar law firm, represented Summerville and Emeritus in four elder abuse actions where they were named as defendants. The Defendants argue disqualification is appropriate under <i>California Rules of Professional Conduct, Rule 1.9</i>, which provides in part that a "lawyer who has formerly represented a client in a matter shall not thereafter represent another person in the same or a substantially related matter in which that person's interests are materially adverse to the interests of the former client unless the former client gives informed written consent." The Court has inherent power "to control in furtherance of justice, the conduct of its ministerial officers, and of all other persons in any manner connected with a judicial proceeding before it, in every manner pertaining thereto." (<i>Code Civ. Proc., §128(a)(5)</i>.) This includes the power to disqualify counsel in appropriate cases. (<i>In re Complex Asbestos Litig.</i> (1991) 232 Cal.App.3d 572, 585.) "Where the potential conflict is one that arises from the successive representation of clients with potentially adverse interests, the courts have recognized that the chief fiduciary value jeopardized is that of client confidentiality." (Flatt v. Superior Court (1994) 9 Cal.4th 275, 283.) "Thus, where a former client seeks to have a previous attorney disqualified from serving as counsel to a successive client in litigation adverse to the interests of the first client, the governing test requires

that the client demonstrate a 'substantial relationship' between the subjects of the antecedent and current representations." (Id.)

Defendants submit documents from four cases where Hunter was defense counsel in elder abuse cases. However, the defendants in this case (Emeritus and Summerville) are only named in the *Cheifer* and *National Coalition* cases and Defendants do not explain documents from the Tegeler and Loukides cases are relevant when the Defendants were not named as parties in those actions. The documents submitted consist of the plaintiffs' complaints, defense discovery responses and Hunter's billing. Laura Sitar, a partner at the Pleiss Sitar firm, submits a declaration authenticating the documents and also stating that "Mr. Hunter was intimately engaged in the defense" of the Defendants. (Sitar Decl. ¶¶7, 9) There are no declarations from either Emeritus or Summerville.

The question therefore is whether defendants have submitted evidence to "establish that any confidential information about the defense in those cases would be at issue in this case." (*Khani v. Ford Motor Co.* (2013) 215 Cal. App. 4th 916, 922) The *Khani* case is persuasive. In *Khani v. Ford Motor Co.*, an attorney who worked for Ford's counsel left the firm and went to work for a lemon law firm which represented plaintiffs. The lawyer then filed, on behalf of a plaintiff, a Song-Beverly case against Ford. Ford argued the lawyer was disqualified because the attorney had represented Ford in numerous lemon law cases. The DCA disagreed and made clear that simply because the prior cases involved claims under the same statute, "[t]he substantial relationship test does not subject an attorney to automatic disqualification on this ground alone." (*Khani v. Ford Motor Co.* (2013) 215 Cal.App.4th 916, 922) Avalos cited the *Khani* case at length in his opposition and Defendants' reply ignored the cited authority.

Here, the evidence submitted shows that in the *Cheifer* case, Hunter represented Emeritus in connection with its operation of the Corona Brookdale facility. In the *National Coalition* case, Hunter represented Summerville in connection with its operation of the Brookdale Chatsworth facility. There is no evidence that Avalos or any of the people involved in his care were involved in the cases arising from incidents at the Corona or Chatsworth facilities. What is missing is a declaration from defendants explaining the relationship between Avalos' case and the four cases Mr. Hunter worked on. Defendants fail to connect a single confidence learned in Hunter's prior representation of the defendants that relates to the Avalos litigation.

The Court notes that Defendants point to a single billing entry on 12/15/21 where Hunter billed 1.2 hours for "review and evaluate privileged file from Brookdale Corona." (Motion at 2:27-28) While Defendants repeatedly argue this is a significant entry, there is no declaration explaining what privileged documents were reviewed. Based on the Court's review of the billing entries surrounding the 12/15/21 entry, there is no reason to believe this entry related to anything more than reviewing a case specific file such as the plaintiff's medical records.

		Defendants also argue the work done by Mr. Hunter “ordinarily requires counsel to learn how the represented entity is organized, who controls relevant policies, what records exist and where they are maintained, how the client evaluates employees and witnesses, what defenses and discovery positions it adopts, and how it evaluates exposure and settlement.” (Reply at 4:3-5) While such may “ordinarily” occur, there is no declaration that such took place in this case. Based on evidence submitted, Defendants have failed to show that any confidential information learned through Hunter’s prior representation would be at issue in this case. Moreover, Hunter submits evidence in opposition showing that “each representation concerned a different facility, resident, factual record, alleged injury and subject matter.” (Hunter Decl. ¶5; see also ¶¶7, 8, 10-13 22) Plaintiff’s objections to the declaration of Laura Sitar are OVERRULED. Plaintiff’s objections to the declaration of Cadmus Wang are SUSTAINED (hearsay, speculation, foundation, improper opinion). For the foregoing reasons, the motion is DENIED. <i>Plaintiff shall give notice.</i>
4.	Pham v. Pham Lopez 25-1504410	Before the court are the following two motions: (1) motion for leave to amend complaint brought by plaintiff Hien Minh Pham (Plaintiff); and (2) motion to expunge lis pendens filed by defendants Michelle Ngo Pham Lopez, Francisco Humberto Lopez, Thuy Thanh Vorpahl, and Travis D. Vorphal (collectively, Defendants). As set forth below, motion 1 is GRANTED. Motion 2 is CONTINUED to October 15, 2026, at 1:30 p.m. in Department C20. Motion No. 1: Motion for Leave to Amend Courts are bound to apply a policy of great liberality in permitting amendments to the complaint “at any stage of the proceedings, up to and including trial,” absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; see also, <i>Code Civ. Proc.</i>, § 473(a)(1).) Plaintiff has shown the interests of justice support granting the motion as the amendments appear necessary to a complete determination of the action. Plaintiff was diligent in seeking amendment as this motion was filed approximately one month after Plaintiff retained counsel. Given counsel needed time to consult with his client and familiarize himself with the case, filing this motion one month after counsel was retained does not seem unreasonable.

The Court does not find the FAC to be a sham pleading. Plaintiff sufficiently explains the changes in theory from the initial complaint. (Pham Reply Decl., ¶ 19.)

Defendants argue the amendments will prejudice them because they drafted their motion to expunge *lis pendens* based on the theory alleged in the original pleading. However, Defendants were served with the *lis pendens* in September 2025 but waited eight months to file their motion to expunge *lis pendens*. Had Defendants been more diligent in filing their motion to expunge, the costs complained of could have been avoided.

Defendants also claim prejudice due to having to “redo” discovery. However, at the time this motion was filed discovery had not yet commenced. (Ho Decl., ¶ 5.) Defendants’ opposition shows discovery did not get underway until May 26, 2026, after this motion was filed. Defendants were thus aware of Plaintiff’s new theory at the time discovery commenced. They offer no explanation as to why their discovery efforts did not focus on this theory as well. In any event, to avoid any potential prejudice, the Court will permit the parties to engage in further discovery regarding the substance of the amendments.

Regarding Defendants’ argument pertaining to the lack of verification, Plaintiff asserts in the reply that she will serve and file the proposed amended complaint with a signed verification as required. (Ho Decl., ¶ 12.) In terms of Defendants’ argument that the proposed pleading fails to state valid causes of action, these issues are more suitably addressed by demurrer or other appropriate proceedings. (See *Kittredge Sports Co. v. Sup.Ct. (Marker, U.S.A.)* (1989) 213 Cal.App.3d 1045, 1048 [“[T]he preferable practice would be to permit the amendment and allow the parties to test its legal sufficiency by demurrer, motion for judgment on the pleadings or other appropriate proceedings.”].)

For the same reasons discussed above, Defendants’ request for an order that Plaintiff pay \$21,289 in fees incurred in drafting the motion to expunge *lis pendens*, plus the costs of redoing discovery and depositions, is denied.

Accordingly, the motion for leave to file a first amended complaint (FAC) is **GRANTED**.

Plaintiff is to separately file the FAC within 5 days of the date of this order.

Motion No. 2: Motion to Expunge Lis Pendens

This motion is directed at the real property claim alleged in the initial complaint. Given the ruling to grant Plaintiff leave to file an amended complaint, once the FAC is filed, the original complaint will no longer be the operative pleading.

		The Court will thus CONTINUE the hearing on the motion as stated above to allow Plaintiff to file the FAC. The Court will then rule on the motion based on the operative FAC. The parties are permitted to file supplemental briefs to address the real property claim as alleged in the FAC. Plaintiff's supplemental brief is due on or before October 1, 2026. Defendants' supplemental brief is due on or before October 8, 2026. <i>Plaintiff shall give notice of these rulings.</i>
5.	Potter v. Gustafson 26-1554580	Defendant Dicker & Dicker, LLP's ("Firm") Special Motion to Strike ("Motion") plaintiff Jeffrey Potter's ("Plaintiff") Complaint is GRANTED in part and DENIED in part. As an initial note, the court recognizes Plaintiff's ongoing allegation that Firm did not serve the Motion on Plaintiff's counsel. This hearing previously came before the court on 07/30/26 and Plaintiff was given the opportunity to continue the hearing to provide additional time for Plaintiff to prepare an opposition. Plaintiff selected that option and was able to file a timely opposition. The court will therefore proceed on the merits. Firm moves to specially strike the complaint pursuant to <i>Civ. Proc. Code § 425.16</i>. In such motions a plaintiff's claim must 1) arise out of a defendant's protected speech or petitioning; and 2) lack even minimal merit. (<i>Navellier v. Sletten</i> (2002) 29 C4th 82, 88-89 ("<i>Navellier</i>"); <i>Jarrow Formulas, Inc. v. LaMarche</i> (2003) 31 C4th 728, 733.) "Only a cause of action that satisfies both prongs of the anti-SLAPP statute-<i>i.e.</i>, that arises from protected speech or petitioning and lacks even minimal merit-is a SLAPP, subject to being stricken under the statute." (<i>Navellier, supra</i>, 29 Cal. 4th at 89.) A) The Complaint Arises Out of Protected Activity "A claim arises from protected activity when that activity underlies or forms the basis for the claim. [Citations.] Critically, "the defendant's act underlying the plaintiff's cause of action must itself have been an act in furtherance of the right of petition or free speech." [Citations.] "[T]he mere fact that an action was filed after protected activity took place does not mean the action arose from that activity for the purposes of the anti-SLAPP statute." (<i>Navellier, supra</i>, 29 Cal.4th at 89, 124 Cal.Rptr.2d 530; see <i>City of Cotati</i>, at p. 78, 124 Cal.Rptr.2d 519 [suit may be in "response to or in retaliation for" protected activity without necessarily arising from it].) Instead, the focus is on determining what "the defendant's activity [is] that gives rise to his or her asserted liability—and whether that activity constitutes protected speech or petitioning." [Citation.] "The only means specified in section 425.16 by which a moving defendant can satisfy the ['arising from'] requirement is to demonstrate that the defendant's conduct by which plaintiff claims to have been injured falls within one of the four categories described in subdivision (e)...." [Citation.] In short, in ruling on an anti-SLAPP motion, courts should consider the elements of the challenged claim and what actions by the defendant supply those

elements and consequently form the basis for liability.” (*Park v. Bd. of Trustees of California State Univ.* (2017) 2 Cal. 5th 1057, 1062–63.)

Firm argues the issues in the complaint arise out of protected activity and were related to small claims court actions Plaintiff filed against Defendants’ then clients. Gustafson was in court to assist the clients in those matters and the binders that Plaintiff allegedly claimed were thrown at him contained trial exhibits. Gustafson states Plaintiff had refused multiple times to accept the binders which the court had ordered exchanged, and that Gustafson did not throw the binders at Plaintiff but rather set them down on a table next to Plaintiff. Gustafson admits that when he provided the binders to Plaintiff he stated, “Here are your fucking exhibits.”

“Under the plain language of section 425.16, subdivisions (e)(1) and (e)(2), as well as the case law interpreting those provisions, all communicative acts performed by attorneys as part of their representation of a client in a judicial proceeding or other petitioning context are per se protected as petitioning activity by the anti-SLAPP statute.” (*Cabral v. Martins* (2009) 177 Cal. App. 4th 471, 479–80.) The verbal communication regarding exhibits, though with an improper expletive, would be protected. The additional action of providing the exhibits, either by throwing them or dropping them on a table, are related to the protected conduct as well as they were performed in connection with an issue under consideration or review by a judicial body. For the first step in the analysis, it appears Gustafson’s actions were related to any issue under judicial consideration. Firm has met its initial threshold burden on the Motion and the burden transfers to Plaintiff to show merit as to each cause of action (“COA”).

Firm also argues the litigation privilege applies pursuant to *Civ. Code* § 47(b). Under that code section, a privileged publication or broadcast is one made in any judicial proceeding. Even if the alleged actions taken by Gustafson might fall under the litigation privilege, they are “not protected under the anti-SLAPP statute because the litigation privilege and the anti-SLAPP statute are substantively different statutes that serve quite different purposes, and it is not consistent with the language or the purpose of the anti-SLAPP statute to protect such threats.” (*Flatley v. Mauro* (2006) 39 Cal. 4th 299, 322.) Illegal acts are not protected under anti-SLAPP. (*Id.*, at 324-25.)

Although the litigation privilege does not appear to bar the action, Firm has sufficiently shown the alleged actions of Gustafson meet its initial burden. The burden on the Motion transfers to Plaintiff.

B) Plaintiff’s Transferred Burden

“If the defendant makes the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success. We have described this second step as a “summary-judgment-like procedure.” [Citation.] The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and

made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff's evidence as true, and evaluates the defendant's showing only to determine if it defeats the plaintiff's claim as a matter of law. [Citation.] " [C]laims with the requisite minimal merit may proceed." " (Baral v. Schnitt (2016) 1 Cal. 5th 376, 384–85.)

"In opposing an anti-SLAPP motion, the plaintiff cannot rely on the allegations of the complaint, but must produce evidence that would be admissible at trial." (HMS Cap., Inc. v. Laws. Title Co. (2004) 118 Cal. App. 4th 204, 212.) "Whether plaintiffs have established a prima facie case is a question of law." (Id.)

"Only a cause of action that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP, subject to being stricken under the statute." (No Doubt v. Activision Publ'g, Inc. (2011) 192 Cal. App. 4th 1018, 1026.)

1) COA No. 1 – Assault

"The essential elements of a cause of action for assault are: (1) defendant acted with intent to cause harmful or offensive contact, or threatened to touch plaintiff in a harmful or offensive manner; (2) plaintiff reasonably believed she was about to be touched in a harmful or offensive manner or it reasonably appeared to plaintiff that defendant was about to carry out the threat; (3) plaintiff did not consent to defendant's conduct; (4) plaintiff was harmed; and (5) defendant's conduct was a substantial factor in causing plaintiff's harm." (So v. Shin (2013) 212 Cal. App. 4th 652, 668–69.)

In the original declaration, Plaintiff stated Gustafson stood and advanced toward Plaintiff and then threw a large binder of trial exhibits toward Plaintiff. (Potter Decl. ¶ 5.) After Gustafson threw the binder, he raised a fist in a threatening manner and yelled at Plaintiff words to the effect of "fuck you Potter, I am going to get you." (Potter Decl. ¶ 6.) Given Gustafson's size, the confined space, his abrupt advance, raised fist and manner in which Gustafson positioned himself, and the way Gustafson threw the binder, Plaintiff believed he was about to be struck. (Potter Decl. ¶ 7.) As the result of Gustafson's conduct, Plaintiff allegedly "suffered physical injuries including neck strain, exacerbation of pre-existing back conditions, chest pain, heart palpitations, and limitation of motion, as well as severe emotional distress requiring therapy." (Potter Decl. ¶ 12.) Plaintiff's complaint has also alleged that at all relevant times, Gustafson was employed by Defendant or retained Gustafson as an agent or representative for its client against Plaintiff. (Complaint ¶ 5.)

Plaintiff has shown this cause of action has merit. The Motion is **DENIED** as to this COA.

2) COA No. 2 – Battery

"The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant's conduct; and (4) a reasonable person in plaintiff's position would have been offended by the touching." (*So v. Shin* (2013) 212 Cal. App. 4th 652, 669.)

Battery requires an actual touching of the Plaintiff by Gustafson. Nothing in Plaintiff's declaration indicates Gustafson personally touched Plaintiff or that the binder touched Plaintiff. As such, there is no battery and this COA lacks even minimal merit, and the Motion is **GRANTED** as to this COA.

3) COA No. 3 – *Negligent Hiring, Supervision, and Retention*

"To prevail on his negligent hiring/retention claim, [plaintiff] will be required to prove [employee] was [defendant employer]'s agent and [defendant employer] knew or had reason to believe [employee] was likely to engage in [misconduct]. On the negligent supervision and failure to warn claims, [plaintiff] will be required to show [defendant employer] knew or should have known of [employee]'s alleged misconduct and did not act in a reasonable manner when it allegedly recommended him to serve as [plaintiff]'s Bible instructor." (*Lopez v. Watchtower Bible & Tract Society of New York, Inc.* (2016) 246 Cal.App.4th 566, 591.)

"An employer may be liable to a third person for the employer's negligence in hiring or retaining an employee who is incompetent or unfit. [Citation.]" [Citation.] Negligence liability will be imposed upon the employer if it "knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes. [Citation.] As such, "California follows the rule set forth in the Restatement Second of Agency section 213, which provides in pertinent part: 'A person conducting an activity through servants or other agents is subject to liability for harm resulting from his conduct if he is negligent or reckless: ... [¶] (b) in the employment of improper persons or instrumentalities in work involving risk supervision and/or retention of an employee is one of direct liability for negligence, not vicarious liability.'" (*Delfino v. Agilent Techs., Inc.* (2006) 145 Cal. App. 4th 790, 815 ("Delfino").)

Plaintiff's declaration provides no facts or evidence regarding Firm ever knowing or having reason to believe Gustafson engaged or would engage in misconduct. The declaration did not show any facts or evidence that Firm knew about Gustafson's alleged tendencies toward misconduct and did not act in a reasonable manner.

Although Plaintiff stated an intent to move for discovery in support of this COA, *Civ. Proc. Code* § 425.16(g) stays discovery proceedings unless a properly noticed motion showing good cause is filed. As Plaintiff has not filed any such motion, the alleged lack of evidence does not support continuing the present Motion.

This COA lacks even minimal merit, and the Motion is **GRANTED**.

4) COA No. 4 – Physical Elder Abuse

Physical abuse of an Elder includes, among other things, assault and battery. (*Welf. & Inst. Code §§ 15610.63 and 15657.*) Plaintiff has stated he is 72 years old, which qualifies as an elder under the code. (Potter Decl. ¶ 1.) Plaintiff needs to show recklessness, oppression, fraud, or malice in the commission of the abuse to show minimal merit for this COA.

"Plaintiffs must plead and prove something more than negligence—that is, reckless, oppressive, fraudulent, or malicious conduct. [Citation.] "The latter three categories involve 'intentional,' 'willful,' or 'conscious' wrongdoing of a 'despicable' or 'injurious' nature." [Citation.] Recklessness is "a subjective state of culpability greater than simple negligence, which has been described as a 'deliberate disregard' of the 'high degree of probability' that an injury will occur. [citations.] Recklessness, unlike negligence, involves more than 'inadvertence, incompetence, unskillfulness, or a failure to take precautions' but rather rises to the level of a 'conscious choice of a course of action ... with knowledge of the serious danger to others involved in it.'" (Fenimore v. Regents of Univ. of California (2016) 245 Cal. App. 4th 1339, 1347 [Regarding medical care providers].)

Plaintiff has pled no facts supporting the fraud or oppression requirements.

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (*Civ. Code § 3294(c)(1).*)

"Recklessness" is defined as, "[c]onduct whereby the actor does not desire harmful consequence but nonetheless foresees the possibility and consciously takes the risk." (RECKLESSNESS, *Black's Law Dictionary* (12th ed. 2024).)

As noted above, Plaintiff's cause of action for assault had sufficient merit to defeat the Motion. Plaintiff has also pled sufficient facts to support recklessness and/or malice related to the alleged assault. A cause of elder abuse based upon assault also has sufficient merit.

Plaintiff's COA for battery does not have even minimal merit.

The Motion is **DENIED** as to this COA based upon assault but **GRANTED** as to this COA based upon battery.

Firm's objections are **SUSTAINED** as to nos. 1-2 (irrelevant); 3-4 (hearsay).

Firm to give notice.

6.	IHC California v. Bravo Tile & Stone, Inc. 26-1547692	On August 12, 2026, this Court issued an Order to Show Cause re Contempt, directed to defendants Bravo Tile & Stone, Inc. ("Bravo") and Ahmet Onerbay ("Onerbay"), for a hearing on 9/17/26. Neither Bravo nor Onerbay have filed any response thereto. However, Plaintiff IHC California LLC ("Plaintiff") has failed to show adequate service for notice of this hearing. Unless the citee has concealed himself from the court, he must be personally served with both the affidavit upon which the OSC is based, and the order to show cause; otherwise, the court lacks jurisdiction to proceed. (<i>Cedars-Sinai Imaging Medical Group v. Superior Court</i> (2000) 83 Cal.App.4th 1281, 1286–1287.) Here, Plaintiff has presented evidence of personal service only for the Order itself - not also for the <i>ex parte</i> application and supporting papers which led to issuance of the Order to Show Cause. (ROAs 92 and 104.) Nor does it appear that the 8/11/26 <i>ex parte</i> application itself was properly served. (See <i>C.C.P. § 1010.6(c)(2)</i> [unrepresented party may consent to electronic service] and <i>CRC 2.251(c)(3)(B)</i> [self-represented parties are to be served by non-electronic methods unless they affirmatively consent to electronic service].) The same defect appears in the proofs of service for the prior <i>ex parte</i> which resulted in issuance of the 6/18/26 Order. The hearing is therefore CONTINUED to October 22, 2026. Plaintiff is to timely personally serve both defendants with a Notice of Continued Hearing, along with copies of the Court's 8/12/26 Order, and all of the <i>ex parte</i> papers submitted on 8/11/26. Plaintiff will need to address the validity of the orders at issue, in light of that service defect, for the continued hearing date. <i>Counsel for Plaintiff is to give notice of this ruling.</i>
7.	Soteropoulos v. FCA US LLC 25-1492568	Before the Court is a demurrer and motion to strike filed by defendants FCA US LLC and Orange Coast Chrysler Jeep Dodge Ram Fiat (collectively, Defendants) as to portions of the first amended complaint (FAC) filed by plaintiff Paul Soteropoulos (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED without leave to amend as to the 5th cause of action and OVERRULED as to the 6th cause of action; the motion to strike is GRANTED without leave to amend as to the punitive damages claim and DENIED as to the request for civil penalties. Demurrer <u>5th cause of action</u>, fraudulent inducement – concealment: Plaintiff fails to allege fraud with the requisite specificity, including sufficient facts giving rise to a duty to disclose. (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40 [elements]; <i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157 [particularity requirement].) Plaintiff failed to address the fraud claim at all in the opposition, thereby abandoning the claim. (<i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20; <i>Westside Center Associates v.</i>

		<i>Safeway Stores 23, Inc.</i> (1996) 42 Cal.App.4th 507, 529; <i>Glendale Redevelopment Agency v. Parks</i> (1993) 18 Cal.App.4th 1409, 1424.) The demurrer is thus SUSTAINED without leave to amend as to this cause of action. <u>6th cause of action</u>, negligent repair: The economic loss rule does not apply in cases involving the negligent performance of services that results in foreseeable economic loss. (<i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764, 777, 781-785; <i>Sabicer v. Ford Motor Company</i> (C.D. Cal. 2019) 362 F.Supp.3d 837, 840; <i>Madison v. Ford Motor Company</i> (E.D. Cal., Aug. 6, 2019, No. 2:19-CV-00853 WBS DB) 2019 WL 3562386, at *2.) Further, Plaintiffs do not allege that repair obligations arose out of a contract between Plaintiff and defendant Orange Coast Chrysler Jeep Dodge Ram Fiat. Thus, it cannot be said that Plaintiff's negligent repair claim is barred by the economic loss rule. The demurrer is thus OVERRULED as to this cause of action. Motion to Strike <u>Punitive damages</u>: As discussed above, Plaintiff has not alleged a viable fraud cause of action. Punitive damages are thus not available based on the fraud claim. Plaintiff's remaining allegations relate to statutory violations under the Song Beverly Act. By seeking a civil penalty under <i>Civil Code section 1794</i>, Plaintiff waived punitive damages under Civil Code section 3294. (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 228.) The motion is therefore GRANTED without leave to amend as to punitive damages. <u>Civil penalties</u>: The pre-suit notice requirements under <i>Code of Civil Procedure section 871.24, subdivision (k)</i> became operative on July 1, 2025. (<i>Code of Civ. Proc. § 871.24, subd. (k).</i>) Here, this action was initiated on June 24, 2025, before the effective date of the statute. (<i>McClung v. Employment Development Dept.</i> (2004) 34 Cal.4th 467, 475 [statutes operate prospectively only unless there is express language of retroactivity].) The motion is thus DENIED as to civil penalties. <i>Counsel for Defendant shall give notice of this ruling.</i>
8.	Andresen v. Watermeier 25-1507923	Before the Court is a demurrer and motion to strike filed by defendant David Watermeier as to the second amended complaint (SAC) filed by plaintiffs Jorin Andresen and Christina Compani. For the reasons set forth herein, the demurrer is OVERRULED and the motion to strike is DENIED. Proof of Service Defective Initially, the proof of service at ROA 26 is insufficient. Although the proof of service states that the documents were served by email, there is no email address listed to which the documents were sent. Demurrer

		<i>CRC Rule 3.1320</i> states that "Each ground of demurrer must be in a separate paragraph and must state whether it applies to the entire complaint, cross-complaint, or answer, or to specified causes of action or defenses." Defendant does not demurrer to a specific cause of action but instead states in the notice that the demurrer is "on the ground that the Second Amended Complaint fails to state facts sufficient to constitute a cause of action against these(sic) defendant." (Demurrer at 2:18-19) "A demurrer which attacks an entire pleading should be overruled if one of the counts therein is not vulnerable to the objection." (<i>Bacon v. Wahrhaftig</i> (1950) 97 Cal. App. 2d 599, 605) Here, the first cause of action for Breach of the Buy Sell Agreement is sufficiently pled. "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (<i>Richman v. Hartley</i> (2014) 224 Cal.App.4th 1182, 1186.) Plaintiffs allege that on 1/25/25, they entered into a written buy-sell agreement with Watermeier. (SAC ¶17) Plaintiffs allege they performed all obligations but that Watermeier breached the agreement when he prematurely declared the agreement null and void. (SAC ¶¶ 18, 20, 35, 36) Accordingly, the demurrer is OVERRULED. Motion to Strike <i>CRC Rule 3.1322</i> requires that "A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense." Here, the notice does not identify any portion of the complaint sought to be stricken. Instead the notice states that defendant seeks to strike the entire complaint. However, the motion does not provide authority which would support striking the entire complaint. Assertions unsupported by legal authority are presumed to lack merit. (<i>Atchley v. City of Fresno</i> (1984) 151 Cal.App.3d 635, <i>In Re Marriage of Nichols</i> (1994) 27 Cal.App.4th 661, 673; <i>Utz v. Aureguy</i> (1952) 109 Cal.App.2d 803, 807) Accordingly, the motion to strike is DENIED. Defendant shall file his answer to the second amended complaint within 10 days. <i>Plaintiffs shall give notice.</i>
9.	Yuh v. Western 24-1388773	Defendant Tin Westen's unopposed motion for summary judgment on the complaint of plaintiff Lundar Yuh is GRANTED. Defendant has met his initial burden to show Plaintiff cannot meet the elements of his legal malpractice claim, including that he would have

		obtained a better outcome in the underlying action but for Defendant's alleged conduct. (<i>Code Civ. Proc.</i>, § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 825, 851 [burden]; <i>Namikas v. Miller</i> (2014) 225 Cal.App.4th 1574, 1581 [to establish causation, plaintiff must show that he would have obtained a better settlement or a better result at trial with "legal certainty"]; Defendant's Separate Statement of Undisputed Material Facts 1-9.) Plaintiff did not oppose the motion and thus, failed to meet his shifted burden to show a triable issue of material fact. (<i>Aguilar, supra</i>, 25 Cal.4th at p. 851.) <i>Counsel for Defendant shall give notice of this ruling.</i>
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